



Protest nr: 01

Class	FORMULA KITE Men
Protestor	GER JV21 - Jan Vöster
Protestee	FRA ND26 - Nell De Jaham
Witnesses	
Type	protest
Incident	Nell was underlaid and tacked onto port without caring for me and the other people who were on starboard. He tacked even though there was no room and I, on starboard, had to avoid so aggressively, that my kite crashed and was in the water for 15 min. at least. It was easily doable for France to avoid hindering me on port but he just tacked, willingly tacking my right of way and almost tangling me.
Date/Time of hearing	20 Apr 2026 at 14:45
Location	Jury Rooms Base Nautique 1st floor
Procedural matters	1. Hearing No. 1 was heard together with hearing No. 3 in accordance with RRS 63.2(b) since both hearings arose from the same incident. 2. GER JV21 was represented by Jan Vöster. 3. FRA ND26 was represented by Nell De Jaham. 4. FRA MC94 did not come to the hearing, the hearing proceeded in accordance with RRS 63.1(b). FRA MC94 was represented by Mathéo Coguiec when announcing the decision. 5. During the hearing the international jury clarified in accordance with RRS 63.2(c) that the hearing request was not only a protest but also a request for redress, and proceeded with it accordingly.
Facts found	1. The wind was 7-8 knots with flat water at the time of the incident. 2. FRA ND26, GER JV21, and FRA MC94 were approaching mark 1 for the first time in race 3 on starboard tack. GER JV21 was fetching the mark, FRA MC94 was sailing clear ahead and slightly to leeward of GER JV21. FRA ND26 was sailing 10-15 metres to leeward and clear ahead of FRA MC 94. 3. FRA ND26 tacked, and was sailing thereafter on port tack. 4. FRA MC94 bore off and contact occurred between her kite and the kite of FRA ND26. 5. GER JV21 bore off sharply, and contact occurred between her kite and the kite of FRA ND26. 6. All three competitors fell into the water. 7. The kite of GER JV21 collapsed and GER JV21 required outside help to recover. GER JV21 retired from the race. 8. FRA ND26 took a One-Turn Penalty as soon as she recovered. 9. No damage, injury, or tangle occurred.



Conclusion	1. FRA ND26 on port tack failed to keep clear of GER JV21 and FRA MC94 on starboard tack, and broke RRS 10. 2. FRA ND26 did not avoid contact with GER JV21 and FRA MC94 even though it was reasonably possible, and broke RRS 14(a). 3. It was not reasonably possible for GER JV21 and FRA MC94 the right-of-way kiteboards to avoid contact with FRA ND26 when it became clear that FRA ND26 was not keeping clear. GER JV21 and FRA MC94 did not break RRS 14(a). 4. When FRA ND26 tacked to port, there was no reasonable possibility that she would not break RRS 10. FRA ND26 failed to compete in compliance with the principles of sportsmanship and fair play as stated in Basic Principles and required by RRS 2. FRA ND26 broke RRS 2. 5. GER JV21's score in race 3 was made significantly worse through no fault of her own by an action of FRA ND26 that resulted in a penalty under RRS 2. Therefore, the requirements for redress in RRS 61.4(b)(5) are met. 6. The international jury was unable to determine the consequences of the incident on FRA MC94's score.	
Rules applicables	RRS 2, 10, 14(a), 61.4(b)(5), 63.1(b), 63.2(c)	
Jury Decision:	1. FRA ND26 is DNE in race 3.	2. Redress is given to GER JV21. GER JV21 is to be scored in race 3 points equal to the average, rounded to the nearest tenth of a point (0.05 to be rounded upward), of her points in all races in the Preliminary series, except the race in question.
Date of decision:	20 Apr 2026 at 15:43	
Jury members	Yoann Peronneau (IJ-FRA), John Doerr (IJ-GBR), Johanna Poksi (IJ-EST), Sven Möller (GER), Bence Böröcz (IJ-HUN)	
Signature:		

20 Apr 2026 18:36:35